

Court No. - 29

Case :- WRIT - C No. - 42822 of 2016

Petitioner :- Yogeshwar Singh

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Rajesh Kumar Dubey

Counsel for Respondent :- C.S.C., Mangla Prasad Rai

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Heard the learned counsel for the petitioner and Sri Mangla Prasad Rai, the learned counsel for the respondent.

This Court by an order dated 5th February, 2016 while dismissing ***Writ Petition No.67932 of 2012, Yogeshwar Singh Vs. State of U.P. and others*** had directed the petitioner to file an application under clause 6.5 of the Electricity Supply Code, 2005 for correction of the bill. Pursuant to the said order, the petitioner filed an application dated 9th June, 2016, annexure 2 to the writ petition.

According to the petitioner, the said application is still pending and on the other hand, recovery is being sought against the petitioner pursuant to the original bill.

Sri Mangla Prasad Rai, the learned counsel for the electricity department contends that the application under Clause 6.5 of the Electricity Supply Code, 2005 is defective and, therefore, it cannot be decided.

Be that as it may. If there is a defect in the application, the Executive Engineer is required to intimate the consumer, namely, the petitioner to remove the defect but cannot sit on that

application and not pass any orders.

We, accordingly, dispose of the matter directing the Executive Engineer to pass appropriate orders on the petitioner's application dated 9th June, 2016, which is purported to have been filed under Clause 6.5 of the Electricity Supply Code, 2005 within two weeks from the date of production of a certified copy of this order.

Order Date :- 8.9.2016

Bhaskar

(Vipin Sinha, J.) (Tarun Agarwala, J.)